STANDATA interpretation 23-BCI-019

Building

Occupancy classification for supportive living accommodations

Date Issued: December 2025

Purpose

To clarify the application of the *Safety Codes Act* (Act) and the National Building Code - 2023 Alberta Edition (NBC(AE)) in determining the occupancy classification of buildings intended for clients receiving various levels of supportive living accommodation.

Discussion

Designation and occupancy classification to facilities providing supportive living accommodations.

Care occupancy
In proposed Group B, Division 3 care occupancy buildings, some authorities having jurisdiction (AHJ) have required alternate occupancy classification to more restrictive, Group B, Division 2 treatment occupancy buildings. Some reasons include:

- the ability of occupants to self-evacuate.
- AHJ assesses levels of care as treatment occupancy or assesses that transitional or crisis intervention should presume a level of care as a treatment occupancy.
- the design of the building capable of being a treatment occupancy.

The definitions within the NBC(AE) for care and treatment occupancies are not necessarily interchangeable with defined or described terms for supportive living under the *Continuing Care Act*. Each regulation has its own context and objectives: for instance, supportive living residences regulated under continuing care regulations may be classified as a Group B, Division 3 care occupancy or a Group C residential occupancy. Accommodations where treatment is provided are regulated under other legislation and a Group B, Division 2 treatment occupancy classification would apply.

An assessment conducted by a Case Manager (CM) or Health Care Professional (HCP) is required in the decision process for the proper placing of a patient/client/resident. The duty and authority for assessment is with the CM or HCP, not with the AHJ.

It is not the position of an AHJ to provide an assessment or presumption of level of care of an occupant's needs for care or treatment in reviewing the occupancy classification proposed for a building.

Correspondence from the National Research Council supports our position that there is no assumption in the NBC(AE) or in the National Fire Code - 2023 Alberta Edition (NFC(AE)) that residents in a Group B, Division 3 care occupancy must evacuate unassisted. On the contrary, the NBC(AE) and NFC(AE) requirements imply residents in care occupancies and patients in treatment occupancies will both require assistance during an evacuation. The following measures were implemented to address this concern:

- larger egress capacity of 18.4 mm per person,
- wider exit stairs,

©2025 Government of Alberta | December 2025 | Municipal Affairs

- fire compartments on floor areas, and
- enough supervisory staff on duty to perform the fire safety plan.

Therefore, the building classification for a Group B, Division 3 care occupancy should not vary based on the capacity of the occupants to evacuate without assistance.

Residential Occupancy
In proposed Group C, residential occupancy buildings, some AHJ's have required alternate occupancy classification to more restrictive, Group B, Division 3 care occupancy buildings.

Some reasons include but are not limited to:

- residents receive supportive living funding.
- AHJ assessed the residents as required to be in a care occupancy.
- development permit was issued for a group home as applicable for the type of development approval (group homes are listed in the appendix of the NBC(AE) as a Group B, Division 3).
- the resident receives home care services.

Occupancy classification for a supportive living accommodation classified as a Group C, residential occupancy should not vary based on reasons above.

Full versions of the *Continuing Care Act,* its Regulations and standards can be accessed here.

Accommodation Standards - Supportive Living Accommodation 2024

Standard 25
25(1) An operator shall develop and maintain written processes for the assessment of applicants for residency in the supportive living accommodation, including the assessment of
(a) applicants' physical, emotional and cognitive abilities in relation to the physical design and available services of the supportive living accommodation,
(b) applicants' behaviours in relation to the needs of current residents, and
(c) the suitability of available services in relation to the needs, safety and security of applicants.

Code References

Division A, Article 1.4.1.2.

1.4.1.2. Defined Terms

Care means the provision of services other than *treatment* by or through care facility management to residents who require these services because of cognitive, physical or behavioural limitations.

Care occupancy (Group B, Division 3) means the *occupancy* or use of a *building* or part thereof, other than a *home-type care occupancy*, where *care* is provided to residents. (See Note A-1.4.1.2.(1).)

Home-type care occupancy (Group B, Division 4) means the *occupancy* or use of a *building* consisting of a single detached housekeeping unit where *care* is provided to residents and may include the living space of the caregiver and their family. (See Note A-1.4.1.2.(1).)

Treatment means the provision of medical or other health-related intervention to persons, where the administration or lack of administration of these interventions may render them incapable of evacuating to a safe location without the assistance of another person. (See Note A-1.4.1.2.(1).)

©2025 Government of Alberta | December 2025 | Municipal Affairs

Treatment occupancy (Group B, Division 2) means the *occupancy* or use of a *building* or part thereof for the provision of *treatment*, and where overnight accommodation is available to facilitate the *treatment*. (See Note A-1.4.1.2.(1).)

Sentences, 9.10.2.2.(2)(3)(4)(5)

9.10.2.2. Home-Type Care Occupancies (See Note A-9.10.2.2.)

2) *Home-type care occupancies* with sleeping accommodation for not more than 10 persons shall
   a) comply with the applicable requirements of Part 9 relating to detached houses (see Note A-9.10.2.2.(2)(a)), and
   b) except as provided in Sentences (3) and (4), be
      i) sprinklered in conformance with NFPA 13D, "Standard for the Installation of Sprinkler Systems in One- and Two-Family Dwellings and Manufactured Homes," and
      ii) provided with a minimum 30-minute water supply for the sprinkler system.

3) A sprinkler system need not be provided in accordance with Sentence (2) where the *building*
   a) is 1 *storey* in *building height*, without a *basement* or *mezzanine*,
   b) has sleeping accommodation for not more than 4 residents receiving *care* on a *floor area* served by 2 *barrier-free means of egress* leading to an *exit* at ground level that is not more than 30 m from any point in the *floor area*,
   c) in lieu of having *smoke alarms* installed as required in Subsection 9.10.19., has a residential fire warning system installed in conformance with CAN/ULC-S540, "Standard for Residential Fire and Life Safety Warning Systems: Installation, Inspection, Testing and Maintenance,"
      i) with *smoke detectors* in each sleeping room, in the kitchen, and in common spaces such as activity rooms, corridors and hallways,
      ii) with *heat detectors* in each attached *storage garage*, *service room*, laundry room and storage room,
      iii) capable of sounding audible signals in accordance with Articles 9.10.19.2. and 9.10.19.5. at a frequency not higher than 520 Hz,
      iv) powered in accordance with Article 9.10.19.4.,
      v) equipped with a silencing device in accordance with Article 9.10.19.6.,
      vi) equipped with an annunciator panel with separate zone indication of the actuation of the alarm-initiating devices, and
      vii) designed to notify the fire department in conformance with Sentence 3.2.4.7.(4) that an *alarm signal* has been initiated,
   d) has emergency lighting in the common *means of egress* that complies with Sentences 9.9.12.3.(2) to (7), and
   e) complies with Section 3.8.

4) A sprinkler system need not be provided in accordance with Sentence (2) where
   a) the *building* is not more than 2 *storeys* in *building height*,
   b) the *building* has sleeping accommodation for not more than 4 residents receiving *care* only on the *first storey*,
   c) the *first storey* is served by 2 *barrier-free means of egress* leading to an *exit* at ground level that is not more than 30 m from any point in the *first storey*,
   d) in lieu of having *smoke alarms* installed as required in Subsection 9.10.19., the *building* has a residential fire warning system installed in conformance with CAN/ULC-S540, "Standard for Residential Fire and Life Safety Warning Systems: Installation, Inspection, Testing and Maintenance,"
      i) with *smoke detectors* in each sleeping room, in the kitchen, and in common spaces such as activity rooms, corridors and hallways,
      ii) with *heat detectors* in each attached *storage garage*, *service room*, laundry room and storage room,
      iii) capable of sounding audible signals in accordance with Articles 9.10.19.2. and 9.10.19.5. at a frequency not higher than 520 Hz,
      iv) powered in accordance with Article 9.10.19.4.,
      v) equipped with a silencing device in accordance with Article 9.10.19.6.,
      vi) equipped with an annunciator panel with separate zone indication of the actuation of the alarm-initiating devices, and
      vii) designed to notify the fire department in conformance with Sentence 3.2.4.7.(4) that an *alarm signal* has been initiated,

©2025 Government of Alberta | December 2025 | Municipal Affairs

e) all floors of the *building* have emergency lighting in the common *means of egress* that complies with Sentences 9.9.12.3.(2) to (7),
f) the *basement* is separated from the remainder of the *building* by a door that complies with Sentence 9.10.9.3.(2) and by a continuous smoke-tight barrier consisting of not less than 12.7 mm thick gypsum board installed on
i) both sides of the walls, and
ii) the underside of the floor-ceiling framing,
g) an air-handling system designed to shut down upon a signal from the residential fire warning system serves the *basement* and other *storeys*, and
h) the *first storey* complies with Section 3.8.

5) *Home-type care occupancies* with sleeping accommodation for more than 10 persons shall comply with the applicable requirements of Part 3 relating to *care occupancies*.

Application

The proposed construction of a building or part thereof in which the intent is to provide care services in the occupancy without treatment or to provide residential accommodations without required care services.

Interpretation

1. Where a building is intended and designated by the owner to provide care services falling within the scope of Group B, Division 3 care occupancy classification, and no treatment is intended to be provided, the Group B, Division 3 care occupancy classification would be applicable.

2. Where a building is intended and designated by the owner to provide Group C, residential accommodations with no provision of required care services falling within the scope of Group B, Division 3 care occupancy classification, the Group C, residential occupancy classification would be applicable.

This INTERPRETATION is applicable throughout the Province of Alberta.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code - 2023 Alberta Edition

Issued by the Provincial Building Administrator

[Original signed]
Paul Chang

Alberta Municipal Affairs – Technical and Corporate Services
Email: safety.services@gov.ab.ca Phone: 1-866-421-6929

To sign up for our List Subscription Service go to: municipalaffairs.gov.ab.ca/am_list_subscription_services

©2025 Government of Alberta | December 2025 | Municipal Affairs